

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 22, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

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https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml.

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

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SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	21CV377860	George Jones vs Michael Liddle et al	Hearing: Order of Examination Parties to appear for the examination.
LINE 2	21CV377860	George Jones vs Michael Liddle et al	Hearing: Order of Examination Parties to appear for the examination.
LINE 3	21CV382584	K W vs DOE 1 et al	Motion: Judgment on Pleadings Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	22CV396394	J. W. vs DOE 1 et al	Motion: Judgment on Pleadings Ctrl Click (or scroll down) on Line 4 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 5	25CV455836	Alicia Gutierrez vs Forge-Vidovich Motel Limited Partnership	Motion to Compel Responses to Form Interrogatories - General, Set One Defendant has not opposed this motion. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“[A]ppellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel ... leading the trial court and us to presume they had no meritorious arguments.”].) The motion is GRANTED. Defendant shall serve complete, verified, code-compliant responses without objections to Plaintiff’s Form Interrogatories - General, Set One, within 15 days of the date of service of the final order. Defendant shall pay Plaintiff sanctions in the amount of \$1,512.50. (Code Civ. Proc., § 2030.290(c)) within 30 days of the date of service of the final order. Plaintiff shall prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 6	25CV460162	LEAH FILO et al vs FORD MOTOR COMPANY et al	Motion to Compel Arbitration and Stay Proceedings Plaintiff has not opposed this motion. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“[A]ppellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion ... leading the trial court and us to presume they had no meritorious arguments.”].) Upon good cause shown, the motion is GRANTED. Plaintiff’s action against Beltray Inc., DBA All Star Ford shall be compelled to arbitration and the action as to Defendant Beltray Inc., DBA All Star Ford, <i>only</i> shall be stayed pending the outcome of arbitration. The action as to Beltray Inc., DBA All Star Ford, <i>only</i> shall be set for an Arbitration Status Review Hearing on Friday, May 29, 2026 at 10:30 a.m. in Department 13.
LINE 7	23CV417549	KEVIN LU vs QUINCY WINSHIP et al	Hearing: Pitchess Motion OFF CALENDAR. This civil action has been dismissed and all future court dates have been vacated. Thus, there is no basis for Plaintiff’s motion.

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LINE #	CASE #	CASE TITLE	RULING
LINE 8	23CV417549	KEVIN LU vs QUINCY WINSHIP et al	“P.C. 1054” Motion OFF CALENDAR. This civil action has been dismissed and all future court dates have been vacated. Thus, there is no basis for Plaintiff’s motion. In addition, criminal discovery motions under Penal Code § 1054 are not within the jurisdiction of the civil court.
LINE 9	21CV388190	First Point Oakmead, LLC vs MiaSole Hi-Tech Corp.	Motion for Attorney’s Fees & Costs Ctrl Click (or scroll down) on Line 9 for tentative ruling.
LINE 10	25CV456065	Hung Le vs Khung Tran	Motion for Trial Preference & Further Case Management Conference Ctrl Click (or scroll down) on Line 10 for tentative ruling.

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Calendar Line 3

Case Name: *K.W. v. County of Santa Clara, et al.*

Case No.: 21CV382524

Before the Court is Defendant County of Sonoma's (the "County") motion for judgment on the pleadings in its favor as to the Third Amended Complaint ("TAC") filed by Plaintiff K.W. ("Plaintiff" or "K.W.")

I. Background

This is an action for negligence for sexual abuse allegedly suffered by Plaintiff while in foster care in Sonoma and Santa Clara Counties. According to the allegations of the TAC, the defendants placed Plaintiff in foster care for approximately thirteen years, beginning in or about 1979. (TAC, ¶ 25.) Plaintiff and his sister, T.W., were initially placed with Howard Ratcliff and Patty Jo Ratcliff (collectively, the "Ratcliffs") in Santa Clara County. (*Id.*, ¶ 26.) In approximately 1989, the Ratcliffs relocated to Sonoma County with Plaintiff and his sister. (*Ibid.*)

Plaintiff alleges that during his placement with the Ratcliffs, which lasted approximately eleven years, he was repeatedly sexually assaulted and abused by the Ratcliffs, as well as by their biological son, Howard Radcliff, Jr. ("Howard Jr."). (TAC, ¶¶ 27- 31.) Plaintiff informed his social worker of the abuse but was left with the Ratcliffs and continued to suffer further sexual assault and abuse from them and Howard Jr. (*Id.* ¶ 32.) Plaintiff continued to be sexually abused until a report was made to Sonoma County law enforcement that such abuse was occurring in the residence. (*Id.*, ¶ 33.)

Plaintiff alleges that at all relevant times, the defendants knew, or in the exercise of reasonable care should have known that the foster home Plaintiff was assigned to was not safe and that it was foreseeable that he would be sexually assaulted or abused and subject to maltreatment in that placement. (TAC, ¶ 34.) The defendants nevertheless failed to act upon their actual or constructive notice of the foregoing, subjecting Plaintiff to further abuse.

Based on these allegations, Plaintiff initiated this action in May 2021 and, after several versions of the complaint, filed the operative TAC on February 9, 2024, asserting the following causes of action: (1) negligence (against Defendant County of Santa Clara); (2) negligence (against the County); and (3) negligence (against Does 3 through 90).

II. The County's Motion for Judgment on the Pleadings

A. Legal Standard

"A motion for judgment on the pleadings is analogous to a general demurrer. The task of this court is to determine whether the complaint states a cause of action. All facts alleged in the complaint are deemed admitted, and we give the complaint a reasonable interpretation by reading it as a whole and all of its parts in their context. We are not concerned with a plaintiff's possible inability to prove the claims made in the complaint, the allegations of which are accepted as true and liberally construed with a view toward attaining substantial justice." (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44

Cal.App.4th 194, 198, internal citations omitted.) As such, a general demurrer does not lie to only part of the cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.4th 1150, 1167.) Like a general demurrer, a judgment on the pleadings cannot lie in only part of a cause of action, but must address the whole cause of action.

Like a general demurrer, the grounds for the motion shall appear on the face of the pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438, subd. (d).)

B. Discussion

1. Applicability of Discretionary Immunity

In the instant motion, the County maintains that Plaintiff's claim for negligence against it- predicated on County social workers allegedly failing to take investigative or corrective action in response to Plaintiff's purported reports of abuse- is barred by the employees' discretionary immunity for their acts or omissions under Government Code section 820.2 ("Section 820.2"). Because the employees had discretionary immunity, the County maintains, it had derivative immunity by virtue of Government Code section 815.2 ("Section 815.2"), subdivision (b). The County continues that the recent decision issued by the Fifth District Court of Appeals in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 review granted June 25, 2025 (S290435) (*K.C.*) finding that discretionary immunity applied to "strikingly similar" allegations, thereby barring claims against a county for negligence, is directly on point and therefore binding on this Court.

As a general matter, "[e]xcept as otherwise provided by statute ..., a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code, § 820, subd. (a).) A public entity, in turn, "is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Gov. Code, § 815.2, subd. (a).) However, "[e]xcept as otherwise provided by statute, a public entity is *not* liable for an injury resulting from an act or omission or an employee of the public entity where the employee is immune from liability." (Gov. Code, § 815.2, subd. (b), emphasis added.) That is, "if the employee is immune, so too is the [public entity]." (*Kemmerer v. County of Fresno* (1988) 200 Cal.App.3d 1426, 1435 [disapproved on other grounds] (*Kemmerer*).) "Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." (Gov. Code, § 820.2.)

The discretionary acts which are the subject of Section 820.2 have generally been defined as those which "require[] the exercise of judgment or choice." (*Kemmerer, supra*, 200 Cal.App.3d at 1437.) Discretionary immunity "is limited to policy and planning decisions, and does not reach 'lower level decisions that merely implement a basic policy already formulated.' [Citation.]" (*Jacqueline T. V. Alameda County Child Protective Services* (2007) 155 Cal.App.4th 456, 465 (*Jacqueline T.*)). As the County notes in its supporting memorandum, Section 820.2 immunity has long been held to shield social service providers,

such as social workers, for their actions given the discretionary nature of those acts. (See, e.g., *Becerra v. County of Santa Cruz* (1989) 68 Cal.App.4th 1450, 1462 [decision to place child in particular home discretionary]; *Thompson v. County of Alameda* (1980) 27 Cal.3d 741, 748-749 [selection of custodian for delinquent juvenile discretionary]; *Jenkins v. County of Orange* (1989) 212 Cal.App.3d 278 [social worker investigations of child abuse complaints discretionary]; *Jacqueline T., supra*, 155 Cal.App.4th at 468 [decision concerning removal of child who is possible victim of abuse or neglect is discretionary].)

As set forth above, the County insists that under *K.C.*, this Court must conclude that Section 820.2 shields the social workers that are the subject of this action from liability for their alleged failures to take investigative or corrective action in response to Plaintiff's reports of abuse because the decisions underlying these purported failures were discretionary.

In *K.C.*, the plaintiff alleged that she was sexually abused at foster care placements and that the defendant county, who was purportedly notified of the abuse, failed to take any investigative or corrective action. The trial court sustained the county's demurrer without leave to amend, holding that the county's social services providers were shielded from liability under Section 820.2 for their discretionary determinations concerning the plaintiff's complaints of abuse, and that the county was therefore similarly immune from liability under Section 815.2, subdivision (b). The appellate court affirmed, concluding that the social workers' decisions as to investigation of potential child abuse and the discontinuation of the plaintiff's foster placement based on suspicions of such abuse were discretionary in nature, and thus subject to Section 820.2 immunity, because they "not only involved the exercise of analysis and judgment as to what is just and proper under the circumstances but also constitute[d] sensitive policy decision[s] that require[d] judicial abstention to avoid affecting a coordinate governmental entity's decisionmaking or planning process." (*K.C., supra*, 109 Cal.App.5th at 617, internal citations and quotations omitted.)

The court also emphasized that upholding immunity for social workers in such circumstances was a result favored by numerous "strong policy considerations." (See *Kemmerer, supra*, 200 Cal.App.3d at 1438.) This included the notion that society is "best served by permitting [public employees] to perform their assigned tasks without fear of being called to account in a civil action" (*Freeny v. City of Buenaventura* (2013) 216 Cal.App.4th 1333, 1343), and that "[t]he subjection of officials, to the innocent as well as to the guilty, to the burden of a trial ad to the danger of its outcome would impair their zeal in the performance of their functions, and it is better to leave the injury unredressed than to subject [them] to the constant dread of retaliation." (*Kemmerer, supra*, at 1437.) The court noted that social workers "must make [] quick decision based on perhaps incomplete information and initiate proceedings against [those] who may have abused their children. The social worker's independence ... would be compromised were the social worker constantly in fear that a mistake could result in a time-consuming and financially devastating civil suit." (*K.C.*, 109 Cal.App.5th at p. 618, quoting *Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 880-881.) Discretionary immunity applies "even to lousy decisions in which the [social] worker abuses his or her discretion, including decisions based on woefully inadequate information." (*Id.* at 619, citing *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381.) The court thus concluded that Section 820.2 immunity applied to the alleged acts or omissions of the social workers concerning the plaintiff's claims of abuse, and that the county was therefore immune by virtue of subdivision (b) of Section 815.2.

Here, the County argues that Plaintiff's allegations in the TAC are nearly identical to those in the complaint at issue in *K.C.*, and thus this Court can only conclude that Plaintiff's negligence claim is barred by discretionary immunity. Indeed, a review of the allegations at issue reveal stark similarities, to wit:

- Foster care placement by a county. (*Id.* [K.C. complaint ¶ 23]; TAC ¶¶ 25, 26; Opp.3:4-5.)
- Plaintiff was sexually abused while in foster care. (*Id.* [K.C. complaint ¶ 24]; TAC ¶ 26; Opp.3:5- 6.)
- The conduct “against Plaintiff included conduct which constitutes a ‘childhood sexual assault’ as defined by [Code Civ. Proc., § 340.1, subd. (d)].” (*Id.* at 611 [K.C. complaint ¶ 26]; TAC ¶ 63.)
- The abuse was reported, and the county was aware or on notice. (*Id.* [K.C. complaint ¶ 32]; TAC ¶¶ 34-40, 46; Opp.3:8-11.)
- Despite the county's knowledge of the sexual abuse, no corrective action was taken. (*Id.* [K.C. complaint ¶ 33]; TAC ¶¶ 38; Opp. 3:11-14.)
- The county knew or should have known of the sexual abuse and the county knew or should have known that the foster care placement “was unsafe. It was thus foreseeable that Plaintiff ... would be sexually assaulted and/or abused and subjected to maltreatment in [the foster care placement].” (*Id.* at 611-612 [K.C. complaint ¶¶ 34, 35]; TAC ¶¶34 ; Opp. 3:17-20.)
- “[The county] knew or had reason to know, or [was] otherwise on notice, of misconduct by [Perpetrator] that created a risk of childhood sexual assault and/or abuse against Plaintiff, and [the county] failed to take reasonable steps and/or implement safeguards to avoid such acts of childhood sexual assault and abuse.” (*Id.* [K.C. complaint ¶ 36]; TAC ¶ 86, 87, 88; Opp. 3:14-17.)
- “At all relevant times, [the county] knew or should have known that [Perpetrator was] unfit, dangerous, and a threat to the health, safety, and welfare of [minors] entrusted to [the county's] care. (*Id.* [K.C. complaint ¶ 39]; TAC ¶ 44; Opp. 3:14-20.)
- “Despite such actual or constructive knowledge [the county] provided [Perpetrator] unsupervised access to Plaintiff and gave [Perpetrator] the opportunity to commit foreseeable acts of child sexual abuse and/or assault.” (*Id.* [K.C. complaint ¶ 40]; TAC ¶¶ 47; Opp. 3:14-20.)
- “[The county] knew[,] or had reason to know[,] or [was] otherwise on notice of sexual assault and abuse of Plaintiff by [Perpetrator] and [the county] failed to take reasonable steps or to implement reasonable safeguards to avoid foreseeable acts of childhood sexual assault.” (*Id.* [K.C. complaint ¶ 41]; TAC ¶¶ 88; Opp. 3:14-20.)

Given these similarities, the Court agrees with the County that, pursuant to *K.C.*, discretionary immunity applies to the acts or omissions of the social workers that gave rise to Plaintiff's negligence claim and derivative immunity applies as to the County.

Despite the foregoing, Plaintiff insists that the County's motion should be denied because (1) discretionary immunity does not apply to the facts of this case as a matter of law and (2) the County is directly liable for breaching its mandatory statutory duties to investigate and cross-report Plaintiff's purported abuse. The Court does not find either of these contentions persuasive.

Relying on *Barner v. Leeds* (2000) 24 Cal.4th 676 (*Barner*), *Johnson v. State* (1968) 69 Cal.2d 782 (*Johnson*) and *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 984 (*Caldwell*), Plaintiff first argues that discretionary immunity does not apply to the acts or omissions at issue because that conduct qualifies as “ministerial” rather than “discretionary.” He asserts that under *Johnson*, a two-step process exists for evaluating a defense of discretionary act immunity. First, Plaintiff explains, in order to be entitled to blanket discretionary act immunity, a decision must be a *quasi-legislative, policy-level* decision. (Opp. at 8:21-22, citing *Johnson*, 69 Cal.2d at 795.) Second, the “decision must be a conscious and considered decision, weighing the risks and advantages in light of the available information.” (*Id.* at 8:24-25, citing *Johnson* at 793.) Plaintiff insists that neither of these elements are satisfied here. But the *K.C.* court considered this argument and rejected it, stating, with respect to the first element:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of [Section] 820.2. [Citations.] Nor do we question that “maintenance of a child in a foster home involves an obligation of continued supervision” and much of what is required “in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” [Citation.] However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are “[no] less ‘discretionary’ for purposes of the immunity of [Section] 820.2 than the original placement decision.” [Citation.] We do not accept the notion that a “subjective decisionmaking process” could [be] transmute[d] “into a ministerial act” [citation] simply because that process assesses incidents that occurred within a foster home.

(*K.C.*, 109 Cal.App.5th at 619.)

It further specifically addressed, and dismissed, the contention concerning the second element that the county’s demurrer should not have been overruled because the operative complaint did not indicate that an “an employee of the County made a considered ... decision” or “actually exercised” “discretion ... by weighing of risks and benefits in deciding on the challenge course of action.” (*Id.*) In doing so, the court explained that:

While a finding of immunity is precluded “solely on grounds that the [affected] employee’s general course of duties is “discretionary” [citation] and “requires a showing that the specific conduct giving rise to the suit involved an actual exercise of discretion, i.e., a [conscious] balancing [of] risks and advantages” (citation), “strictly careful, thorough, formal, or correct evaluation” is not mandatory [citation]. “Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” [Citations.] Here, under a “fair reading” of the complaint [citation], [the plaintiff] essentially alleged [the defendant]’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” [Citation.]

(*K.C.*, 109 Cal.App.5th at 619-620.)

Plaintiff nevertheless insists that with respect to the second element, the facts as alleged do not demonstrate that the County is entitled to discretionary immunity under *D.G. v. Orange County Social Services* (2025) 108 Cal.App.5th 465 (*D.G.*), where the court, applying *Johnson* to claims involving supervision of foster care, rejected the defendant county's blanket immunity argument. However, as the County responds in its reply, the *K.C.* court dismissed *D.G.* as "inapposite" given that it concerned whether discretionary immunity was a proper basis for granting *summary judgment* and not whether a pleading was legally sufficient. Thus, *D.G.* does not compel denial of Defendant's motion.

The Court finds *K.C.* persuasive and agrees that under *K.C.*, the County is immune from liability for its employees' discretionary acts.

2. Breach of Mandatory Duty

Citing to Government Code section 815.6,¹ Plaintiff next asserts that his claim against the County is not barred by discretionary immunity because it is directly liable for breaching mandatory statutory duties. (Opp. at 14:17-18.) But as the County responds, Plaintiff does not plead breach of a mandatory duty by the County in the TAC, and "[a]llegations of a breach of a mandatory duty must be pleaded with specificity" (*Sumner Peck Ranch, Inc. v. Bureau of Reclamation* (E.D. Cal. 1993) 823 F.Supp. 715, 727); this includes identifying the statute which imposes the mandatory duty alleged to have been breached (see *Washington v. County of Contra Costa* (1995) 38 Cal.App.4th 890, 896). The County also notes that Plaintiff previously alleged in a prior iteration of his complaint- specifically, the Second Amended Complaint- that it breached mandatory duties in numerous statutes, but removed those allegations after meet and confer efforts between the parties that preceded a potential challenge to that pleading by the County as required by Code of Civil Procedure section 430.41, subdivision (a). (See February 5, 2024 Stipulation and Order for Leave to File Third Amended Complaint.) Plaintiff now requests leave to amend to re-allege those same allegations.

In the stipulation to file the TAC that resulted from the parties' meet and confer efforts, Plaintiff represented to the Court that he intended file the TAC "in an effort to avoid any challenges going forward with the Second Amended Complaint, prior to the Defendant Sonoma's filing of a demurrer and/or motion to strike... Plaintiff and Sonoma understand and agree that the purpose of Plaintiff's proposed Third Amended Complaint is to address the issue raised per the County of Sonoma's meet and confer efforts with Plaintiff, on deficiencies contained in the Second Amended Complaint, in an effort to avoid further challenges to the Second Amended Complaint, specifically through a demurrer/motion to strike, along with conserving the court's time and resources as well." (See February 5, 2024, Stipulation at 2:1-10.) Given the foregoing, the Court will not grant Plaintiff leave to amend to re-allege the allegations that were removed from the TAC. Not only do Plaintiff's actions (agreeing to remove the allegations in order to avoid an attack on the pleadings and then requesting leave to

¹ This code section provides that "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

re-allege them in another pleading to prolong the case) suggest some level of gamesmanship, but granting Plaintiff the leave he requests suggests any subsequent pleading would be a sham.

In sum, because Plaintiff has not actually alleged breach of any mandatory duty by the County, the Court will not deny the motion on this basis.

3. *Plaintiff's Request to Stay this Action*

Finally, Plaintiff requests that if the Court is inclined to grant the motion without leave to amend, it instead stay this action pending review of *K.C.* by the California Supreme Court, with the petition for review having been granted on June 25, 2025. Plaintiff requests a stay pursuant to Code of Civil Procedure section 583.340, subdivision (b), but this code section only addresses the time within which an action must be brought to trial, and does not itself provide a mechanism for requesting a stay. The County asserts that motions to stay are subject to Code of Civil Procedure section 128, subdivision (a)(3), as well as the notice requirements of California Rule of Court 3.1300 and Code of Civil Procedure section 1005. No such noticed motion is before the Court.

“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Friberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489.) To support a request for a discretionary stay, Plaintiff cites *Nken v. Holder* (2009) 556 U.S. 418. In *Nken*, the high court recognized that “[a] stay is not a matter of right, even if irreparable injury might otherwise result.” [Citation.] It is instead “an exercise of judicial discretion,” and “[t]he propriety of its issue is dependent upon the circumstances of the particular case.” [Citation.]” (*Nken, supra*, 556 U.S. at p. 433.)

Here, the California Supreme Court has denied depublication of the opinion in *K.C.* (*K.C. v. County of Merced*, 2025 Cal. LEXIS 3565, *1), and it has specifically allowed the opinion of the Court of Appeal to be cited for its persuasive value and for trial courts to exercise discretion to choose between sides of any conflict in authority. (*Ibid.*) This administrative directive clearly allows a superior court to choose to follow the review-granted decision’s approach to an issue. (See “Supreme Court Clarifies Citation of Opinions Rule”, April 21, 2021, <https://supreme.courts.ca.gov/news-and-events/supreme-court-clarifies-citation-opinions-rule-1>.) Even under the four factors articulated in *Nken*,² this Court is not convinced Plaintiff makes a strong showing that he is likely to succeed on the merits or will be irreparably injured absent a stay when traditional appellate review remains. These two factors are the most critical. (*Nken, supra*, 556 U.S. at p. 434.) Indeed, one would trust that the California Supreme Court generally considered such interests when allowing *K.C.* to remain citable authority during its own review.

² The legal principles that guide a court’s discretion to issue a stay “have been distilled into consideration of four factors: “(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and (4) where the public interest lies.”” (*Nken, supra*, 556 U.S. at p. 434.)

III. Conclusion and Order

The Motion for Judgement on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *J.W. v. County of Santa Clara, et al.*

Case No.: 22CV396394

Before the Court is Defendant County of Sonoma's (the "County" or "Defendant") motion for judgment on the pleadings in its favor as to the Fourth Amended Complaint ("4AC") filed by Plaintiff J.W. ("Plaintiff" or "J.W.").

IV. Background

This is an action for negligence for sexual abuse allegedly suffered by Plaintiff while in foster care in Sonoma and Santa Clara Counties. According to the allegations of the 4AC, the defendants placed Plaintiff in foster care for approximately eleven years, beginning in 1981. (4AC, ¶ 25.) Plaintiff resided with Howard Ratcliff and Patty Jo Ratcliff (the "Ratcliffs") in homes located in Sonoma and Santa Clara counties. (*Ibid.*)

Plaintiff alleges that during her placement with the Ratcliffs, from 1982 to 1991, she was repeatedly sexually assaulted and abused by the Ratcliffs' biological son, Howard Radcliff, Jr. (4AC, ¶¶ 26. Plaintiff and/or her biological brother reported the abuse to social workers employed by the defendants several times but she remained with the Ratcliffs and continued to suffer sexual assaults and abuse. (*Id.*, ¶¶ 30-33.)

Plaintiff alleges that at all relevant times, the defendants knew, or in the exercise of reasonable care should have known that the foster home Plaintiff was assigned to was not safe and that it was foreseeable that he would be sexually assaulted or abused and subject to maltreatment in that placement. (4AC, ¶ 35.) The defendants nevertheless failed to act upon their actual or constructive notice, subjecting Plaintiff to further abuse. (*Id.*, ¶ 34.)

Based on the foregoing, Plaintiff initiated this action in March 2022 and, after several versions of the complaint, filed the operative 4AC on March 4, 2024, asserting the following causes of action: (1) negligence (against Defendant County of Santa Clara); (2) negligence (against Sonoma); and (3) negligence (against Does 3 through 90).

V. The County's Motion for Judgment on the Pleadings

C. Legal Standard

"A motion for judgment on the pleadings is analogous to a general demurrer. The task of this court is to determine whether the complaint states a cause of action. All facts alleged in the complaint are deemed admitted, and we give the complaint a reasonable interpretation by reading it as a whole and all of its parts in their context. We are not concerned with a plaintiff's possible inability to prove the claims made in the complaint, the allegations of which are accepted as true and liberally construed with a view toward attaining substantial justice." (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 198, internal citations omitted.) As such, a general demurrer does not lie to only part of the cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.4th 1150, 1167.) Like a general demurrer,

a judgment on the pleadings cannot lie in only part of a cause of action, but must address the whole cause of action.

Like a general demurrer, the grounds for the motion shall appear on the face of the pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438, subd. (d).)

D. Discussion

4. Applicability of Discretionary Immunity

In the instant motion, the County maintains that Plaintiff's claim for negligence against it- predicated on County social workers allegedly failing to take investigative or corrective action in response to Plaintiff's purported reports of abuse- is barred by the employees' discretionary immunity for their acts or omissions under Government Code section 820.2 ("Section 820.2"). Because the employees had discretionary immunity, the County maintains, it had derivative immunity by virtue of Government Code section 815.2 ("Section 815.2"), subdivision (b). The County continues that the recent decision issued by the Fifth District Court of Appeals in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 review granted June 25, 2025 (S290435) (*K.C.*) finding that discretionary immunity applied to "strikingly similar" allegations, thereby barring claims against a county for negligence, is directly on point and therefore binding on this Court.

As a general matter, "[e]xcept as otherwise provided by statute ..., a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code, § 820, subd. (a).) A public entity, in turn, "is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Gov. Code, § 815.2, subd. (a).) However, "[e]xcept as otherwise provided by statute, a public entity is *not* liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Gov. Code, § 815.2, subd. (b), emphasis added.) That is, "if the employee is immune, so too is the [public entity]." (*Kemmerer v. County of Fresno* (1988) 200 Cal.App.3d 1426, 1435 [disapproved on other grounds] (*Kemmerer*).) "Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." (Gov. Code, § 820.2.)

The discretionary acts which are the subject of Section 820.2 have generally been defined as those which "require[] the exercise of judgment or choice." (*Kemmerer, supra*, 200 Cal.App.3d at 1437.) Discretionary immunity "is limited to policy and planning decisions, and does not reach 'lower level decisions that merely implement a basic policy already formulated.' [Citation.]" (*Jacqueline T. V. Alameda County Child Protective Services* (2007) 155 Cal.App.4th 456, 465 (*Jacqueline T.*)). As the County notes in its supporting memorandum, Section 820.2 immunity has long been held to shield social service providers, such as social workers, for their actions given the discretionary nature of those acts. (See, e.g., *Becerra v. County of Santa Cruz* (1989) 68 Cal.App.4th 1450, 1462 [decision to place child in particular home discretionary]; *Thompson v. County of Alameda* (1980) 27 Cal.3d 741, 748-749 [selection of custodian for delinquent juvenile discretionary]; *Jenkins v. County*

of Orange (1989) 212 Cal.App.3d 278 [social worker investigations of child abuse complaints discretionary]; *Jacqueline T.*, *supra*, 155 Cal.App.4th at 468 [decision concerning removal of child who is possible victim of abuse or neglect is discretionary].)

As set forth above, the County insists that under *K.C.*, this Court must conclude that Section 820.2 shields the social workers that are the subject of this action from liability for their alleged failures to take investigative or corrective action in response to Plaintiff's reports of abuse because the decisions underlying these purported failures were discretionary.

In *K.C.*, the plaintiff alleged that she was sexually abused at foster care placements and that the defendant county, who was purportedly notified of the abuse, failed to take any investigative or corrective action. The trial court sustained the county's demurrer without leave to amend, holding that the county's social services providers were shielded from liability under Section 820.2 for their discretionary determinations concerning the plaintiff's complaints of abuse, and that the county was therefore similarly immune from liability under Section 815.2, subdivision (b). The appellate court affirmed, concluding that the social workers' decisions as to investigation of potential child abuse and the discontinuation of the plaintiff's foster placement based on suspicions of such abuse were discretionary in nature, and thus subject to Section 820.2 immunity, because they "not only involved the exercise of analysis and judgment as to what is just and proper under the circumstances but also constitute[d] sensitive policy decision[s] that require[d] judicial abstention to avoid affecting a coordinate governmental entity's decisionmaking or planning process." (*K.C.*, *supra*, 109 Cal.App.5th at 617, internal citations and quotations omitted.)

The court also emphasized that upholding immunity for social workers in such circumstances was a result favored by numerous "strong policy considerations." (See *Kemmerer*, *supra*, 200 Cal.App.3d at 1438.) This included the notion that society is "best served by permitting [public employees] to perform their assigned tasks without fear of being called to account in a civil action" (*Freney v. City of Buenaventura* (2013) 216 Cal.App.4th 1333, 1343), and that "[t]he subjection of officials, to the innocent as well as to the guilty, to the burden of a trial ad to the danger of its outcome would impair their zeal in the performance of their functions, and it is better to leave the injury unredressed than to subject [them] to the constant dread of retaliation." (*Kemmerer*, *supra*, at 1437.) The court noted that social workers "must make [] quick decision based on perhaps incomplete information and initiate proceedings against [those] who may have abused their children. The social worker's independence ... would be compromised were the social worker constantly in fear that a mistake could result in a time-consuming and financially devastating civil suit." (*K.C.*, 109 Cal.App.5th at p. 618, quoting *Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 880-881.) Discretionary immunity applies "even to lousy decisions in which the [social] worker abuses his or her discretion, including decisions based on woefully inadequate information." (*Id.* at 619, citing *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381.) The court thus concluded that Section 820.2 immunity applied to the alleged acts or omissions of the social workers concerning the plaintiff's claims of abuse, and that the county was therefore immune by virtue of subdivision (b) of Section 815.2.

Here, the County argues that Plaintiff's allegations in the 4AC are nearly identical to those in the complaint at issue in *K.C.*, and thus this Court can only conclude that Plaintiff's negligence claim is barred by discretionary immunity. Indeed, a review of the allegations at issue reveals stark similarities, to wit:

- Foster care placement by a county. (*Id.* [K.C. complaint ¶ 23]; 4AC ¶ 24, 25; Opp. 3:4-5.)
- Plaintiff was sexually abused while in foster care. (*Id.* [K.C. complaint ¶ 24]; 4AC ¶ 26; Opp. 3:5- 6.)
- Details of the alleged sexual abuse. (*Id.* [K.C. complaint ¶ 25]; 4AC ¶¶ 27-28.)
- The conduct “against Plaintiff included conduct which constitutes a ‘childhood sexual assault’ as defined by [Code Civ. Proc., § 340.1, subd. (d)].” (*Id.* at 611 [K.C. complaint ¶ 26]; 4AC ¶ 29.)
- The abuse was reported, and the county was aware or on notice. (*Id.* [K.C. complaint ¶ 32]; 4AC ¶¶ 30-31; Opp. 3:9-11.)
- Despite the county’s knowledge of the sexual abuse, no corrective action was taken. (*Id.* [K.C. complaint ¶ 33]; 4AC ¶¶ 33; Opp. 3:11-13.)
- The county knew or should have known of the sexual abuse and the county knew or should have known that the foster care placement “was unsafe. It was thus foreseeable that Plaintiff ... would be sexually assaulted and/or abused and subjected to maltreatment in [the foster care placement].” (*Id.* at 611-612 [K.C. complaint ¶¶ 34, 35]; 4AC ¶¶ 35 ; Opp. 3:17-20.)
- “[The county] knew or had reason to know, or [was] otherwise on notice, of misconduct by [Perpetrator] that created a risk of childhood sexual assault and/or abuse against Plaintiff, and [the county] failed to take reasonable steps and/or implement safeguards to avoid such acts of childhood sexual assault and abuse.” (*Id.* [K.C. complaint ¶ 36]; 4AC ¶ 36; Opp. 3:11-14.)
- “At all relevant times, [the county] knew or should have known that [Perpetrator was] unfit, dangerous, and a threat to the health, safety, and welfare of [minors] entrusted to [the county’s] care. (*Id.* [K.C. complaint ¶ 39]; 4AC ¶ 38; Opp. 3:15-17.)
- “Despite such actual or constructive knowledge [the county] provided [Perpetrator] unsupervised access to Plaintiff and gave [Perpetrator] the opportunity to commit foreseeable acts of child sexual abuse and/or assault.” (*Id.* [K.C. complaint ¶ 40]; 4AC ¶¶ 39; Opp. 3:15-17.)
- “[The county] knew[,] or had reason to know[,] or [was] otherwise on notice of sexual assault and abuse of Plaintiff by [Perpetrator] and [the county] failed to take reasonable steps or to implement reasonable safeguards to avoid foreseeable acts of childhood sexual assault.” (*Id.* [K.C. complaint ¶ 41]; 4AC ¶ 40; Opp. 3:17-19.)

Given these similarities, the Court agrees with the County that, pursuant to *K.C.*, discretionary immunity applies to the acts or omissions of the social workers that gave rise to Plaintiff’s negligence claim and derivative immunity applies as to the County.

Despite the foregoing, Plaintiff insists that the County’s motion should be denied because (1) discretionary immunity does not apply to the facts of this case as a matter of law and (2) the County is directly liable for breaching its mandatory statutory duties to investigate and cross-report Plaintiff’s purported abuse. The Court does not find either of these contentions persuasive.

Relying on *Barner v. Leeds* (2000) 24 Cal.4th 676 (*Barner*), *Johnson v. State* (1968) 69 Cal.2d 782 (*Johnson*) and *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 984 (*Caldwell*), Plaintiff first argues that discretionary immunity does not apply to the acts or omissions at

issue because that conduct qualifies as “ministerial” rather than “discretionary.” He asserts that under *Johnson*, a two-step process exists for evaluating a defense of discretionary act immunity. First, Plaintiff explains, in order to be entitled to blanket discretionary act immunity, a decision must be a *quasi-legislative, policy-level* decision. (Opp. at 8:21-22, citing *Johnson*, 69 Cal.2d at 795.) Second, the “decision must be a conscious and considered decision, weighing the risks and advantages in light of the available information.” (*Id.* at 8:24-25, citing *Johnson* at 793.) Plaintiff insists that neither of these elements are satisfied here. But the *K.C.* court considered this argument and rejected it, stating, with respect to the first element:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of [Section] 820.2. [Citations.] Nor do we question that “maintenance of a child in a foster home involves an obligation of continued supervision” and much of what is required “in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” [Citation.] However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are “[no] less ‘discretionary’ for purposes of the immunity of [Section] 820.2 than the original placement decision.” [Citation.] We do not accept the notion that a “subjective decisionmaking process” could [be] transmute[d] “into a ministerial act” [citation] simply because that process assesses incidents that occurred within a foster home.

(*K.C.*, 109 Cal.App.5th at 619.)

It further specifically addressed, and dismissed, the contention concerning the second element that the county’s demurrer should not have been overruled because the operative complaint did not indicate that an “an employee of the County made a considered ... decision” or “actually exercised” “discretion ... by weighing of risks and benefits in deciding on the challenge course of action.” (*Id.*) In doing so, the court explained that:

While a finding of immunity is precluded “solely on grounds that the [affected] employee’s general course of duties is “discretionary” [citation] and “requires a showing that the specific conduct giving rise to the suit involved an actual exercise of discretion, i.e., a [conscious] balancing [of] risks and advantages” (citation), “strictly careful, thorough, formal, or correct evaluation” is not mandatory [citation]. “Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” [Citations.] Here, under a “fair reading” of the complaint [citation], [the plaintiff] essentially alleged [the defendant]’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” [Citation.]

(*K.C.*, 109 Cal.App.5th at 619-620.)

Plaintiff nevertheless insists that with respect to the second element, the facts as alleged do not demonstrate that the County is entitled to discretionary immunity under *D.G. v. Orange County Social Services* (2025) 108 Cal.App.5th 465 (*D.G.*), where the court, applying *Johnson* to claims involving supervision of foster care, rejected the defendant county's blanket immunity argument. However, as the County responds in its reply, the *K.C.* court dismissed *D.G.* as "inapposite" given that it concerned whether discretionary immunity was a proper basis for granting *summary judgment* and not whether a pleading was legally sufficient. Thus, *D.G.* does not compel denial of Defendant's motion.

The Court finds *K.C.* persuasive and agrees that under *K.C.*, the County is immune from liability for its employees' discretionary acts.

5. Breach of Mandatory Duty

Citing to Government Code section 815.6,³ Plaintiff next asserts that his claim against the County is not barred by discretionary immunity because it is directly liable for breaching mandatory statutory duties. (Opp. at 14:17-18.) But as the County responds, Plaintiff does not plead breach of a mandatory duty by the County in the TAC, and "[a]llegations of a breach of a mandatory duty must be pleaded with specificity" (*Sumner Peck Ranch, Inc. v. Bureau of Reclamation* (E.D. Cal. 1993) 823 F.Supp. 715, 727); this includes identifying the statute which imposes the mandatory duty alleged to have been breached (see *Washington v. County of Contra Costa* (1995) 38 Cal.App.4th 890, 896). The County also notes that Plaintiff previously alleged in a prior iteration of his complaint- specifically, the Second Amended Complaint- that it breached mandatory duties in numerous statutes, but removed those allegations after meet and confer efforts between the parties that preceded a potential challenge to that pleading by the County as required by Code of Civil Procedure section 430.41, subdivision (a). (See January 23, 2024 Stipulation and Order for Leave to File Fourth Amended Complaint.) Plaintiff now requests leave to amend to re-allege those same allegations.

In the stipulation to file the 4AC that resulted from the parties' meet and confer efforts, Plaintiff represented to the Court that he intended file the 4AC "in an effort to avoid any challenges going forward with the Second Amended Complaint, prior to the Defendant Sonoma's filing of a demurrer and/or motion to strike... Plaintiff and Sonoma understand and agree that the purpose of Plaintiff's proposed Third Amended Complaint is to address the issue raised per the County of Sonoma's meet and confer efforts with Plaintiff, on deficiencies contained in the Second Amended Complaint, in an effort to avoid further challenges to the Second Amended Complaint, specifically through a demurrer/motion to strike, along with conserving the court's time and resources as well." (See January 23, 2024, Stipulation at 2:1-10.) Given the foregoing, the Court will not grant Plaintiff leave to amend to re-allege the allegations that were removed from the 4AC. Not only do Plaintiff's actions (agreeing to remove the allegations in order to avoid an attack on the pleadings and then requesting leave to re-allege them in another pleading to prolong the case) suggest some level of

³ This code section provides that "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

gamesmanship, but granting Plaintiff the leave he requests suggests any subsequent pleading would be a sham.

In sum, because Plaintiff has not actually alleged breach of any mandatory duty by the County, the Court will not deny the motion on this basis.

6. *Plaintiff's Request to Stay this Action*

Finally, Plaintiff requests that if the Court is inclined to grant the motion without leave to amend, it instead stay this action pending review of *K.C.* by the California Supreme Court, with the petition for review having been granted on June 25, 2025. Plaintiff requests a stay pursuant to Code of Civil Procedure section 583.340, subdivision (b), but this code section only addresses the time within which an action must be brought to trial, and does not itself provide a mechanism for requesting a stay. The County asserts that motions to stay are subject to Code of Civil Procedure section 128, subdivision (a)(3), as well as the notice requirements of California Rule of Court 3.1300 and Code of Civil Procedure section 1005. No such noticed motion is before the Court.

“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Friberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489.) To support a request for a discretionary stay, Plaintiff cites *Nken v. Holder* (2009) 556 U.S. 418. In *Nken*, the high court recognized that “[a] stay is not a matter of right, even if irreparable injury might otherwise result.” [Citation.] It is instead “an exercise of judicial discretion,” and “[t]he propriety of its issue is dependent upon the circumstances of the particular case.” [Citation.]” (*Nken, supra*, 556 U.S. at p. 433.)

Here, the California Supreme Court has denied depublishing of the opinion in *K.C.* (*K.C. v. County of Merced*, 2025 Cal. LEXIS 3565, *1), and it has specifically allowed the opinion of the Court of Appeal to be cited for its persuasive value and for trial courts to exercise discretion to choose between sides of any conflict in authority. (*Ibid.*) This administrative directive clearly allows a superior court to choose to follow the review-granted decision’s approach to an issue. (See “Supreme Court Clarifies Citation of Opinions Rule”, April 21, 2021, <https://supreme.courts.ca.gov/news-and-events/supreme-court-clarifies-citation-opinions-rule-1>.) Even under the four factors articulated in *Nken*,⁴ this Court is not convinced Plaintiff makes a strong showing that she is likely to succeed on the merits or will be irreparably injured absent a stay when traditional appellate review remains. These two factors are the most critical. (*Nken, supra*, 556 U.S. at p. 434.) Indeed, one would trust that the California Supreme Court generally considered such interests when allowing *K.C.* to remain citable authority during its own review.

⁴ The legal principles that guide a court’s discretion to issue a stay “have been distilled into consideration of four factors: “(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and (4) where the public interest lies.”” (*Nken, supra*, 556 U.S. at p. 434.)

VI. Conclusion and Order

The Motion for Judgement on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.

The Court will prepare the final order.

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Calendar Line 9

Case Name: *First Point Oakmead, LLC vs MiaSole Hi-Tech Corp.*

Case Number: 21CV388190

Plaintiff seeks an award of attorneys' fees and costs in the amount of \$158,117.50 (total fees and costs of \$182,823.00, plus \$1,155.00 for reply and attendance at the hearing in this matter, less fees awarded December 15, 2020, of \$25,860.50 = \$158,117.50).

This motion was originally set for hearing on August 5, 2025, and Defendant was given notice. Any opposition was due July 23, 2025. No opposition was filed. By way of a posted and published tentative ruling, the matter was reset to August 22, 2025. Defendant was again given notice. No opposition has been filed. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

The Lease at issue in this action authorizes an award of attorneys' fees and costs to the prevailing party in the event of litigation. Attorneys' fees are allowed as costs when authorized by contract. (Code Civ. Proc., § 1033.5(a)(10)(A).) In an action on a contract where the contract specifically provides for attorneys' fees and costs incurred to enforce that contract, such reasonable fees and costs shall be awarded to the prevailing party, in addition to its other costs. (Civ. Code, § 1717(a).)

Having reviewed Plaintiff's motion and the supporting declaration, Plaintiff's request for attorneys' fees and costs is reasonable under the circumstances. However, the Court will not award the \$1,155.00 requested for reply and attendance at the hearing in this matter. No opposition has been filed and the necessity of attendance at the hearing is unlikely.

The Court awards Plaintiff total fees and costs of \$156,962.50 (\$182,823.00, less fees awarded December 15, 2020, of \$25,860.50 = \$156,962.50).

Plaintiff shall prepare the final order and amended judgment within 15 days of the date of the hearing.

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Calendar Line 10

Case Name: *Hung Le vs Khung Tran*

Case Number: 25CV456065

Plaintiff/Cross-Defendant, Hung Le, (“Le”) seeks an order giving his action a preference under Civil Code §36(d) and setting the matter for trial within 120 days pursuant to Civil Code § 36(f).

A discretionary preference motion must be accompanied by “clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.” (Civ. Code, § 36(d).)

Plaintiff essentially asks the Court to scrutinize the 65-pages submitted as Exhibit 1 to the motion and glean or infer from those pages clear and convincing documentation that raises a substantial medical doubt of his survival beyond six months. Plaintiff’s counsel tells the Court that “[t]he statute doesn’t require a good or an accurate motion, so long as it is accompanied by clear and convincing medical documentation. We indeed submitted “a” motion. I would call the medical records submitted therewith clear and convincing evidence any day of the week.” This is curious advocacy and belies the existence of clear and convincing documentation, which one presumes could be easily identified in a “good” and “accurate” way if it existed. Moreover, “Exhibit 1” is not properly authenticated, supported only by counsel’s declaration that Le “has a host of medical conditions as set out in Exhibit 1, all of which continue to progress.” (Cowan Decl., ¶ 7.) Lastly, the documents do not show a substantial *medical* doubt of survival beyond six months. Under section 36(d), the motion must be accompanied by clear and convincing medical documentation that raises the appropriate medical doubt *and* satisfies the court that the interests of justice will be served by granting the preference. Without sufficient documentation, the Court does not reach the interests of justice or consider exercising discretion.

The Motion for a Preference is DENIED.

The Court will prepare the final order.

The parties are to appear at 9:00 a.m. for the Further Case Management Conference.

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